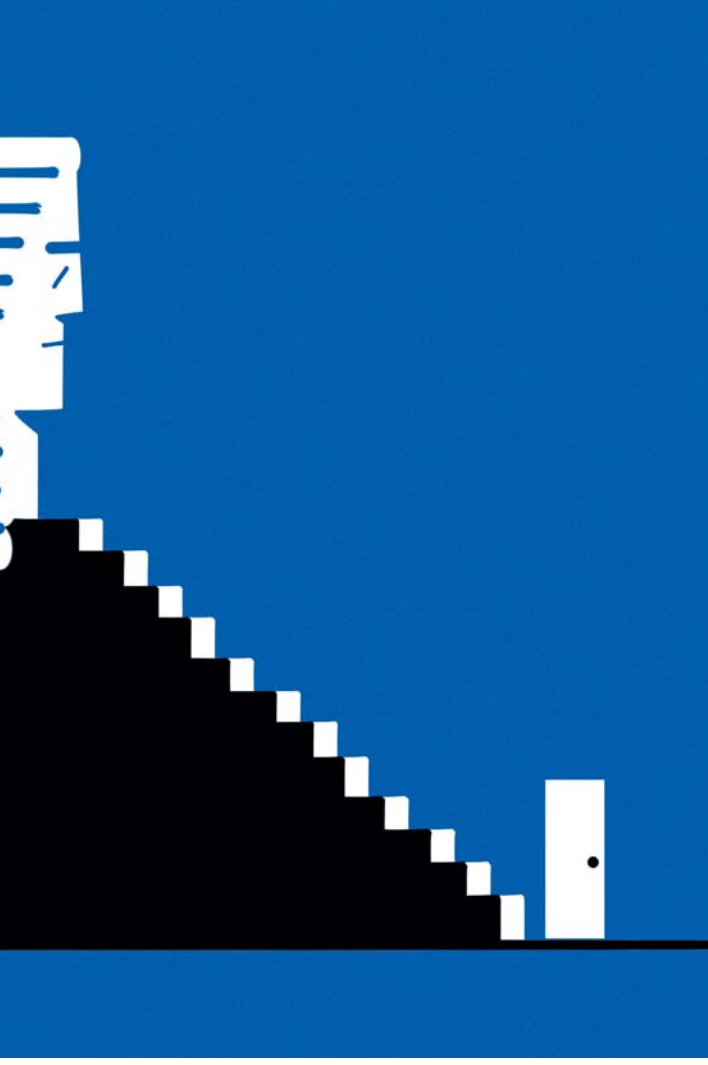


Illustration by SIDDHANT JUMDE

CANDIDATES ARE EXAMINED BY THE EXECUTIVE. THEIR FAMILY'S POLITICAL AFFILIATIONS MAY BE SCRUTINISED, OR OTHER 'QUALIFYING DETAILS', WHICH NEVER COME OUT

consequently, reduces their efficiency. Most of our judges are working to keep up and clean up the rosters," says Siddharth Luthra, a senior advocate in the Supreme Court.

HOW HIGH COURT JUDGES ARE APPOINTED

Judicial appointments in the Supreme Court and high courts are largely governed by the Memorandum of Procedure (MoP), a collaborative framework between the executive and judiciary prepared in 1998. The process for the appointment of high court judges begins with the high court collegium—a body comprising the chief justice and other senior judges—recommending names for appointment. The recommendations are then sent to the state government, the Intelligence Bureau (IB) and the Union law ministry. Once cleared, the ministry forwards them to the Supreme Court collegium—consisting of the Chief Justice of India and other senior SC judges—for approval. The SC collegium sends the final recommendations to the law ministry. In case the government has any reservations, the name(s) are returned to the collegium for reconsideration. If it reiterates its recommendations, the Centre is bound to make the appointments.

Under the existing MoP, the high court collegium must make recommendations six months prior to the occurrence of vacancies. While the existing MoP doesn't suggest any period within which the law ministry is supposed to forward the recommendations to the Supreme Court collegium, in 2021, the Supreme Court set down a period of 18 weeks to complete the process. The IB must give inputs on the names within eight weeks and the law ministry should process the names—following IB inputs—within four to six weeks. As already laid down in the MoP, the Supreme Court collegium must send its final recommendations to the Centre in the next four weeks.

Within the next three weeks, the law ministry must put the names of the prospective high court justices before the prime minister, who would advise the President on the appointments. No time limit has been prescribed for action by the PM and the President. While the central government can send back a name to the SC collegium for reconsideration, if the same name is reiterated by the collegium, the appointment must be made within three to four weeks. Earlier, the MoP did not lay down a timeline for cases when the collegium resends names.

Though this is what the process looks like on paper, none of the players follow any time-frame. Most legal observers concur that building consensus on names has always been time-consuming. The aspirant has to not only pass the intensive scrutiny of the collegiums, but also has to withstand the clearance of the executive. That last test can hinge on his/her family's political affiliation, antecedents and any other "qualifying details", which never come out in public. Neither the Union government nor the collegium system substantiates its decisions and recommendations with reasons.

THE SLOW, FIRST MOVE

The delay first starts at the level of the high court collegiums. The timeline for recommending names six months prior to occurrence of vacancies is rarely followed. While there were 378 vacancies in high courts at the end of March, even the proposals for names from the high court collegiums did not come for 219 positions. Recently, the parliamentary standing committee on personnel, public grievances, law &